



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

May 08, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 10922
(THIRTY-FOURTH REVISION)

EXPIRATION DATE: 2029-03-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: FIBA Technologies, Inc.
Littleton, MA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the use of certain DOT Specification 3A, 3AA, 3AX, 3AAX, 3T, non-DOT cylinders manufactured under DOT-SP 13230, DOT-SP 13258, and UN/ISO seamless steel cylinders (ISO 9809-1, 9809-2 and 9809-3), and UN/ISO seamless steel tubes (ISO 11120) for the transportation in commerce of the compressed gases listed in Paragraph. The cylinders are retested by utilizing 100% Ultrasonic Examination (UE) in lieu of the internal visual inspection and the hydrostatic pressure test. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.302a, 172.302(c), 180.205 and 180.207(d)(1) in that the 100% Ultrasonic Examination (UE) is performed in lieu of the hydrostatic pressure test and internal visual examination as described in this special permit.

NOTE: This special permit does not relieve the holder from securing an approval for requalifying DOT specification, non-DOT specification cylinders manufactured under

special permits, and UN/ISO cylinders and tubes from the Associate Administrator for Hazardous Materials Safety.

5. BASIS: This special permit is based on FIBA Technologies, Inc.'s application dated March 13, 2025, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identi-fication Number	Packing Group
The appropriate proper shipping name listed in § 172.101/ liquefied or non-liquefied compressed gases, or mixtures of such compressed gases which are authorized in the Hazardous Materials Regulations for transportation in DOT 3A, 3AA, 3AX, 3AAX, 3T, non-DOT cylinders manufactured under DOT-SP 13230 and DOT-SP 13258, and UN/ISO 9809-1, 9809-2, 9809-3, and 11120 seamless steel cylinders and tubes.	2.1, 2.2, or 2.3, as appli- cable	As listed in § 172.101 for the specific compressed gas or gas mixture	N/A

Note: Cylinders containing Division 2.3 gases and certain other gases must be requalified every 5 years. See paragraph 7.a.

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Packagings prescribed are DOT Specification 3A, 3AA, 3AX, 3AAX and 3T cylinders; non-DOT cylinders manufactured under DOT-SP 13230 and DOT-SP 13258; or UN/ISO refillable pressure receptacles manufactured in accordance with ISO 9809-1, 9809-2, 9809-3 and ISO 11120. The cylinders are subjected to periodic retesting, reinspection and marking as prescribed in § 180.205 or § 180.207; except that the cylinders are requalified by 100% Ultrasonic Examination (UE) as described in this special permit in lieu of the hydrostatic pressure test and internal visual examination prescribed in § 180.205. FIBA Technologies, Inc. must subject each cylinder (tube) to an external visual examination and retest it in accordance with the procedure described in the application for special permit on file with the Office of Hazardous Materials Safety (OHMS), unless otherwise noted herein. A cylinder (tube) that has been exposed to fire or to excessive heat may not be retested under the terms of this special permit.

In addition, DOT Specification cylinders and non-DOT cylinders that are manufactured under DOT-SP 13230 and DOT-SP 13258 must be retested at least once every five (5) years. UN/ISO refillable pressure receptacles, manufactured in accordance with ISO 9809-1, 9809-2, 9809-3 and ISO 11120) may be requalified once every ten (10) years as specified in Table 1 of 49 CFR § 180.207(c). Cylinders used for hazardous materials that require a 5year retest in Table 1 of 49 CFR 180.207(c) (such as Division 2.3 materials) are not authorized for a 10-year requalification interval.

b. ULTRASONIC EQUIPMENT AND PERFORMANCE: The ultrasonic equipment performance must conform to FIBA Technologies, Inc.'s application on file with OHMS and as prescribed in this special permit. The equipment must be a fully automated, pulse echo type, and incorporate multiple channel transducers, with interactive software. The ultrasonic system must be capable of entering shear waves into the cylinder or tube sidewall in both longitudinal and circumferential directions and normal to the cylinder/tube wall to ensure 100 percent coverage of the cylinder wall. For cylinders, the ultrasonic examination (UE) system must be capable of detecting all defects (such as isolated pits, line corrosion, sidewall defects and line corrosion inside-wall-to base transition area (SBT)). The system must be set-up to perform longitudinal ultrasonic angle beams from the cylinder shoulder down to the cylinder base that includes sidewall-to-base transition (SBT) area and from the cylinder base up to the cylinder shoulder. For tubes, the ultrasonic examination (UE) system must be capable of detecting all defects (such as isolated pits, line corrosion) in the shoulder area at each of the tube. The transducers or cylinder/tube must be arranged so that the ultrasonic beams enter into the cylinder/tube wall in directions necessary to detect calibration cylinder features (e.g., FBH) and thus detect sidewall cylinder flaws. The ultrasonic testing system must be equipped to discern when the ultrasonic data indicates a loss of acoustic coupling between the transducer assembly and the cylinder wall. This safety control measure must be an integral part of the ultrasonic testing procedure. A test must be considered invalid if a Lack-of-Expected-Response (L.E.R.) incident is indicated. An L.E.R. indication of the wall thickness channel in the sidewall-to-base transition (SBT) area will not invalidate the test, as long as one of the longitudinal shear wave channels is transmitting the ultrasonic signals into the SBT area. A manual contact shear or longitudinal search units may be used for evaluating and sizing indicated defects. Manual UE must be performed under direct supervision of a Senior Review Technologist by a minimum Level II operator and in accordance with American Society of Testing Materials (ASTM) practice E 213.

c. REFERENCE STANDARDS (CALIBRATION STANDARDS):

(1) UE Reference Standard: A cylinder or cylinder section must be used as a reference standard and must have similar acoustic properties, surface finish and metallurgical condition as the cylinders under test. The reference standard, (reference cylinder) must have a known minimum design wall thickness (t_m) which is less than or equal to the cylinder under test. The standard reference cylinder for cylinders less

than or equal to 6-inches in diameter must have the same nominal diameter as the cylinder being tested.

Cylinders greater than 6-inches in diameter must conform to the allowable size ranges shown in the following table:

Reference standard	Cylinder Size Ranges being retested by UE	
Outside Diameter (OD-inches)	Minimum OD-inches	Maximum OD-Inches
6.25	6.25	9.375
7.00	6.30	10.5
7.50	6.75	11.25
9.00	8.10	13.5
9.25	8.33	13.88
10.00	9.00	15
12.00	10.80	18
14.00	12.60	21.38
14.25	12.83	27.00
18.00	16.20	33.00
22.00	19.80	36.00
24.00	21.60	

Prior to placing the simulated defects, such as minimum wall thickness, the average minimum wall thickness for the standard reference must be determined by means of an independent method.

(2) The reference standard (reference cylinder) must be prepared to include the following artificial defects:

- (i) Simulated defect for reduction in wall thickness (area corrosion): A simulated defect for area corrosion must be machined into the inside surface of the cylinder. A minimum of two different thickness steps must be machined into the inside cylinder wall. Dimensions must be as follows:

- (A) For DOT 3A and 3AA cylinders and UN/ISO 9809-1, 9809-2 or 9809-3 with an outside diameter less than 18", the simulated defect must be less than or equal to 0.7 square inches (in²) and less than or equal to 1/20 of the design minimum wall thickness (t_m) deep. The remaining wall thickness is equal or greater than t_m .
- (B) For DOT 3A, 3AA, 3AX, 3AAX, 3T, non-DOT cylinders manufactured under DOT-SP 13230 and DOT-SP 13258, and UN/ISO 11120 tubes with an outside diameter of 18" or larger, the simulated defect must be less than or equal to 1.5 sq. inch and 1/20 of the design minimum wall thickness(t_m) deep. The remaining wall thickness is equal to or greater than t_m .
- (ii) Simulated defect for an isolated pit: A flat bottom hole (FBH) must be machined into the inside surface of the reference standard to simulate an isolated pit. Dimensions must be as follows:
- (A) For DOT 3A, 3AA, 3AX, 3AAX, 3T, UN/ISO 9809-1,2,3 and 11120 cylinders/tubes with an outside diameter less than or equal to 4 inches the FBH must be 1/8-inch diameter and 1/3 of t_m depth.
- (B) For DOT 3A, 3AA, 3AX, 3AAX, 3T, UN/ISO 9809-1,2,3 and 11120 cylinders/tubes with an outside diameter greater than 4 inches the FBH must be 1/4-inch diameter and 1/3 of t_m depth.
- (C) For DOT 3A, 3AA, 3AX, 3AAX, 3T cylinders/tubes, non-DOT cylinders manufactured under DOT-SP 13230 and DOT-SP 13258, or UN/ISO 9809-1,2,3 and 11120 cylinders/tubes with an outside diameter of 18" or larger, the reference standard (calibration ring) must include a 1/2" diameter flat bottom hole (FBH) 1/3 of t_m depth.
- (iii) Simulated defect for line corrosion in the sidewall-to-base transition (SBT): A circumferential notch must be machined into the surface of the cylinder to simulate SBT line corrosion. The notch must be 0.10 of t_m depth, 1-inch-long and less than or equal to 0.02-inch width for reference standard (calibration cylinder) produced after April 4, 2006. Reference standard (calibration cylinder) produced before April 4, 2006, may have larger length and width but must be stamped with date to indicate the evidence of their manufactured date.
- (iv) For UN/ISO cylinders/tubes with ultimate tensile strength less than or equal to 950 MPa ($UTS \leq 950$ MPa) authorized for embrittling gases

(H marked) the calibration notch must be 0.10 of t_m depth, 1-inch-long and less than or equal to 0.02-inch width for the reference standard.

(v) For UN/ISO cylinders/tubes with ultimate tensile strength greater than 950 MPa (UTS > 950MPa) not authorized for embrittling gases, the calibration notch must be 0.05 (± 1) of t_m depth, 1-inch-long and less than or equal to 0.02-inch width for the reference standard.

(3) A certification statement signed by a FIBA Technologies, Inc. senior review technologist (SRT) must be available for all reference standards at each site where retesting is performed. The certification statement must include a reference standard drawing for each size and type of cylinder. A reference standard drawing must include dimensions and the locations of each simulated defect.

d. ULTRASONIC EXAMINATION (UE) SYSTEM STANDARDIZATION (CALIBRATION): Prior to retesting a cylinder or tube, the cylinder or tube class (DOT Specification) must be identified. The UE system must be standardized for testing the identified cylinder or tube by using a standard reference standard. The standard reference standard must be similar (material of construction, size, wall thickness, etc.) to the identified cylinders or tubes to be tested. Standardization of the UE system must be performed by using a relevant reference standard cylinder that is described in paragraph 7.c. of this special permit. The standardization of the UE system is as follows:

(1) A reference standard cylinder with a machined simulated defect made to represent area corrosion must be placed in the UE system. The UE system must be standardized to indicate rejection for an area equal to or greater than the machined surface for that class of cylinder (e.g., 0.70 in² for DOT 3A, and 3AA cylinders and UN/ISO refillable seamless steel cylinders and tubes from 4.2" to 16" diameter and 1.5 in² for 3A, 3AA, 3AX, 3AAX, 3T cylinders, non-DOT cylinders manufactured under DOT-SP 13230, DOT-SP 13258, and UN/ISO refillable pressure receptacles seamless steel tubes with an outside diameter of 18" or larger.). Where the wall thickness is reduced below t_m , a straight ultrasound beam must be used to measure the wall thickness of the machined area.

(2) A reference standard cylinder with a machined FBH made to represent an isolated pit must be placed in the UE system. The FBH must be detected by a minimum of two shear wave beams that strike the FBH from opposite sides (e.g., the first shear wave direction is from top to bottom of the cylinder reference standard and the second shear wave direction is from the bottom to top). The UE gain must be increased until the signal from FBH is maximized at 80 percent of the screen height.

(3) A reference standard cylinder with a machined notch made to represent SBT line corrosion must be placed in the UE system. The notch must be detected by a

minimum of one shear wave beam. The UE gain must be increased until the signal from the notch is maximized at 80 percent of the screen height.

e. TEST PROCEDURES:

- (1) During the test, each cylinder or tube must be examined by the standardized (calibrated) UE system using a relevant set-up that is described in paragraph 7.d. of this special permit.
- (2) For each cylinder or tube tested, all 5 scan passes/channels must be performed as they are described in paragraph 7.d.
- (3) For retesting requalification of DOT 3A, 3AA, 3AX, 3AAX and 3T specification cylinders, non-DOT cylinders manufactured under DOT-SP 13230 and DOT-SP 13258, or UN/ISO refillable pressure receptacles seamless steel cylinders or tubes, the UE system that is set-up to perform a 5 pass/channel scan may perform a 3 pass/channel scan if the longitudinal (descending from the cylinder shoulder down to SBT) and circumferential (clockwise) angle beam scans do not detect a rejectable flaw.
- (4) A copy of the operating test procedure (as approved and acknowledged in writing by OHMS) for performing ultrasonic examination of cylinders and tubes under the terms of this special permit must be at each facility performing ultrasonic examination. At a minimum, this procedure must include:
 - (i) A description of the test set-up; test parameters; transducer model number, frequency, and size; transducer assembly used; system standardization procedures and threshold gain used during the test; and other pertinent information.
 - (ii) Requirement for the equipment standardization to be performed at the end of the test interval (cal-out), after 200 cylinders or tubes, or four hours, whichever occurs first. This cal-out can be considered the cal-in for the next interval during continuous operation. Cylinders or tubes examined during the interval between cal-in and cal-out must be quarantined until an acceptable cal-out has been performed. An acceptable cal-out occurs when the calibration cylinder reference standard is examined, and all required features are revealed without changing examination settings. If an acceptable cal-out does not occur, if any equipment that affects the UE results are replaced or altered (such as a search unit or coaxial cable, etc.), all cylinders or tubes examined since the last successful calibration must be re-examined. When a loss of power occurs, a re-standardization must be performed when power is returned and before cylinder or tube examination commences. If no adjustments are made to the examination

settings, then this recalibration may be considered a cal-out for the quarantined cylinders or tubes. However, if examination settings are changed, then all cylinders or tubes examined since the last successful calibration must be re-examined. Additionally, standardization of test equipment shall be performed at the beginning of each work shift, when the cylinder or tube under test has dimensions that exceed the allowable ranges of the reference cylinder reference standard, when there is a change of operator(s), if any equipment that affects the UE results are replaced or altered (such as a search unit or coaxial cable, etc.) or when a loss of power occurs, and at the end of each work shift.

- (5) A copy of the most recent approved operating test procedure must be made available to a DOT representative when requested. Any change to the written procedures or in UE equipment (software or hardware), other than as supplied by the original equipment manufacturer, must be submitted to and approved by AAHMS prior to implementation.
- (6) The equipment may not allow testing of a cylinder or tube unless the system has been properly standardized (calibrated).
- (7) The rotational speed of a reference standard cylinder must be such that all simulated defects are adequately detected, measured and recorded.
- (8) The rotational speed of the cylinder or tube under UE must not exceed the rotational speed used during the standardization.
- (9) The pulse rate must be adjusted to ensure a minimum of 10% over-lapped for each helix.
- (10) The area of ultrasonic examination (UE) coverage must be 100% of the cylindrical section. For cylinders with bottoms, the coverage must extend at least three inches into the sidewall-to-base transition taper.
- (11) The external surface of the cylinder or tube to be examined must be free of loose material such as scale and dirt.

f. ACCEPTANCE/REJECTION CRITERIA: Any DOT Specification cylinder, non-DOT cylinder manufactured under DOT-SP 13230 and DOT-SP 13258, or UN/ISO cylinder or tube must be rejected based on the following:

- (1) The measured wall thickness is less than the calculated design minimum wall thickness using a maximum allowable wall stress of 58,000 psi for DOT 3A and 3AX cylinders, 73,000 psi for DOT 3AA and 3AAX cylinders, and 94,000 psi for DOT 3T cylinders and non-DOT cylinders manufactured under

DOT-SP 13230 and DOT-SP 13258 for the area described in the standardization section herein, paragraph 7.d.

(2) For all UN/ISO cylinders and tubes, the measured wall thickness is less than the ISO stamped minimum wall thickness in millimeters on the cylinder or tube dome end.

(3) If any of the flaws, such as an isolated pit or circumferential line, which meet the rejection criteria and produce a signal with an amplitude that crosses the reference threshold set in the standardization section (paragraph 7.d.).

g. REJECTED CYLINDERS AND TUBES: When a cylinder or tube is rejected, the retester/requalifier must stamp a series of Xs over the DOT Specification number and marked service pressure, or stamp “CONDEMNED” on the shoulder, top head, or neck using a steel stamp, and must notify the cylinder owner, in writing, that the cylinder or tube is rejected and may not be filled with hazardous material for transportation in commerce.

(1) Alternatively, at the direction of the owner, the retester/requalifier may render the cylinder or tube incapable of holding pressure.

(2) If a condemned cylinder or tube contains hazardous materials and the testing requalification facility does not have the capability of safely removing the hazardous material, the retester/requalifier must stamp the cylinder or tube “CONDEMNED” and affix conspicuous labels on the cylinder(s) or tube(s) stating: “UE REJECTED DOT-SP 10922. RETURNING TO ORIGIN FOR PROPER DISPOSITION”. The retester/requalifier may only offer the condemned cylinders or tubes for transportation by a motor vehicle operated by a private carrier to a facility, identified to, and acknowledged in writing with OHMS, that is capable of safely removing the hazardous material. A current copy of this special permit must accompany each shipment of condemned cylinders or tubes transported for the disposal of hazardous material.

h. MARKING:

(1) Each cylinder or tube passing retests requalification under the provisions of this special permit must be marked as prescribed in § 180.209 and 180.213. In addition, each cylinder or tube must be marked UE, in characters not less than 1/4 inch high at a location close to the retester’s/requalifier’s marking.

(2) Each motor vehicle, bundle, or ISO frame, which contains cylinders or tubes manifolded in accordance with § 173.301(g), and requalified under this special permit must be plainly marked on the curb side near the front in letters at least 2 inches high on a contrasting background, “DOT-SP 10922”.

i. UE REPORT: A report must be generated for each cylinder or tube that is examined. The UE report must include the following:

- (1) UE equipment, model and serial number.
- (2) Transducer specification, size, frequency and manufacturer.
- (3) Specification of each standard reference standard used to perform UE. Standard reference standard must be identified by serial number or other stamped identification marking.
- (4) Cylinder or tube serial number and type.
- (5) UE technician's name and certification level.
- (6) Examination date.
- (7) Location and type of each defect on the cylinder or tube (e.g., longitudinal line corrosion 5 inches from base).
- (8) Dimensions (area, depth and remaining wall thickness) and brief description of each defect.
- (9) Acceptance/rejection results.
- (10) The UE report must be on file at each test facility, and copies made available to a DOT official when requested.

j. PERSONNEL QUALIFICATION: Each person who performs requalification, and evaluates and certifies requalification results must meet the following qualification requirements:

- (1) Project Manager/Director of Product Technology is the senior manager of FIBA Technologies, Inc. responsible for compliance with DOT regulations including this special permit. Additionally, the project manager must ensure that each operator and senior review technologist maintains the required certifications described herein.
- (2) The personnel responsible for performing cylinder and tube requalification under this special permit must be qualified to an appropriate Ultrasonic Testing Certification Level (Level I, II, or III) in accordance with the American Society for Nondestructive Testing (ASNT) Recommended

Practice SNT-TC-1A depending upon the assigned responsibility as described below:

(i) System startup and calibration must be performed by a Level II operator. A Level II operator may review and certify test results. However, written procedures for accepting/rejecting a cylinder or tube must be provided by the senior review technologist. Based upon written criteria, the Level II Operator may authorize cylinders or tubes that pass the requalification to be marked in accordance with paragraph 7.h. of this special permit. A person with Level I certification may perform a system startup, check calibration, and perform ultrasonic testing examination under the direct guidance and supervision of a Senior Review Technologist or a Level II Operator, either of whom must be physically present at the test site so as to be able to observe testing conducted under this special permit.

(ii) Senior Review Technologist (SRT) is a person who provides written UE procedure, supervisory training, examinations (Level I and II) and technical guidance to operators, and reviews and verifies the requalification results. The SRT must prepare and submit the reports required in paragraph 7.i. and annually verify that the UE program is operated in accordance with the requirements of this special permit. An SRT must have a thorough understanding of the DOT Regulations (49 CFR) pertaining to the requalification and reuse of DOT cylinders and tubes that are authorized under both this special permit and ASNT Recommended Practice SNT-TC-1A and must possess:

(A) A Level III certification from ASNT in Ultrasonic Testing;

(B) A Professional Engineer (PE) License with a documented experience for a minimum of 2 years of experience in Non-Destructive Evaluation (NDE) of pressure vessels or pipelines using the ultrasonic examination technique; or

(C) A PhD degree in a discipline of Engineering/Physics with documented evidence of experience in Non-Destructive Evaluation (NDE) of pressure vessels or pipelines using the ultrasonic examination technique or research/thesis work and authoring/co-authoring of technical papers published, in recognized technical journals, in the fields of ultrasonic testing methods.

The most recent copies of certification (e.g., ASNT Level III, P.E.) must be available for inspection at each requalification facility.

k. OPERATIONAL CONTROLS:

(1) No person may perform inspection and testing of cylinders subject to this special permit unless:

(i) That person is an employee or agent of FIBA Technologies, Inc. and has a current copy of this special permit at the location of such inspection and testing;

(ii) That person complies with all the terms and conditions of this special permit; and

(iii) That person is listed in the attachment of this special permit.

(2) Neck Threads Inspection: The external neck threads and flange/sleeve of each tube with a diameter greater than or equal to 18" and mounted on tube trailers or modules must be inspected in accordance with CGA Pamphlet C-23. This inspection must be periodically repeated at least once every ten years.

(3) The marking of the retester's symbol on the cylinders certifies compliance with all of the terms and conditions of this special permit and the HMR.

(4) Each facility approved by OHMS to test cylinders under the terms of this special permit must have a resident operator with at least an ASNT Level II Certification in UT.

(5) The UE equipment and operating procedures identified in this special permit are only authorized for use when the approved SRT is available (or alternatively available by telephone or other electronic means) at each facility operating under the special permit.

(6) Notwithstanding the requirements of a RIN Approval for notification of address and personnel changes, any change in Project manager or SRT, with appropriate documentation (i.e., ANST certification), must be submitted to and acknowledged in writing by OHMS immediately.

8. SPECIAL PROVISIONS:

a. The ultrasonic examination (UE) data, results, and additional technical information deemed pertinent in successful application of the UE must be recorded and kept at each facility for a minimum of 5 years after completion of UE. For any

rejected cylinder or tube, the defect causing the rejection must be fully characterized and profiled. That is, the specific type of defect should be identified (i.e., isolated pits, line corrosion or SBT crack) and the specific size of the defect should be determined (i.e., length, depth, width, diameter, area, etc.). The record includes cylinder or tube type, size, minimum design wall thickness, age, etc. of the rejected cylinder or tube.

b. Shippers (offerors) may use the cylinders or tubes specified and tested in accordance with the provisions of this special permit for the transportation in commerce of those hazardous materials specified herein, provided no modifications or changes are made to the cylinders or tubes. All terms of this special permit and other applicable requirements contained in 49 CFR Parts 171-180 must be met.

c. In order to authorize a cylinder for a special filling limit (+ marking) stated in § 173.302a(b) the cylinder must meet the following:

(1) The cylinder must meet the requirements of § 173.302a(b)(1).

(2) The wall thickness of the cylinder is equal to or greater than the design minimum wall thickness as it is described in the accept/reject criteria of this special permit for each cylinder type.

d. Transportation of Division 2.1 (flammable gases) and Division 2.3 (gases which are poisonous by inhalation) are not authorized aboard cargo vessel or aircraft unless specifically authorized in the Hazardous Materials Table (§ 172.101).

e. Transportation of oxygen is only authorized by aircraft when in accordance with § 175.501.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo-only aircraft and passenger-carrying aircraft, as currently authorized by the regulations for the hazardous materials being transported; or as authorized in DOT-SP 13230 and DOT-SP 13258.

10. MODAL REQUIREMENTS: None, other than as required by the HMR.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MT/BMoore/Casey Chambers